

2015 WL 5818677 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Antonio STONE, Plaintiff,
v.
CITY OF NEW YORK, Xavier Larino **John Nicolosi**, Defendants.

No. 0025248-2015.
September 22, 2015.

Summons

/s/ Gregory Antollino, Esq., 275 Seventh Avenue, Suite 705, New York, New York 10001, (212) 334-7397.

To the above-named defendants:

You are hereby summoned and required to serve upon the Clerk of the Court of the Supreme Court of the State of New York, 851 60 Centre Street, New York, NY 10007, within twenty days after the service of this summons, exclusive of the day of service, or within thirty days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint. The basis for venue is [CPLR § 503](#), the county in which one of the parties resided when the action commenced.

Dated: New York, New York September 22, 2015

NATURE OF ACTION

1. This action is brought by Plaintiff to recover damages for excessive use of force and false arrest.

THE PARTIES

2. Plaintiff is a resident of Bronx, New York.

3. Upon information and belief each of Larino and Nicolosi are residents of one of the boroughs of New York City or its surround suburbs and are members of the NYPD working out of the 42nd Precinct.

4. The City of New York is a municipal corporation whose residence is in all five counties of New York City. Venue is properly placed in this district because the claims and omissions set forth in the complaint occurred in this jurisdiction.

FACTUAL ALLEGATIONS UNDERLYING PLAINTIFF'S CLAIMS

5. On or about July 5, 2014 at approximately 10:38 PM at Southeast corner of Fulton Avenue and Saint Paul's Place, County of the Bronx, State of New York, and plaintiff was returning from a holiday picnic and observing all laws of the United States, New York State and New York City.

6. He was carrying a closed canteen and plate of food and a police car with the individual defendant nearly ran up on sidewalk and cut him off as if they were in hot pursuit. Plaintiff stopped and Nicolosi him over: "What you got?" he said, in a tone that suggested he had contraband.

7. I have nothing, plaintiff said.

8. "Put you hands up," Larino said, who then searched him. He had nothing. The defendants did not run his name but made him put hands on car and searched again. Larino took his wallet out and out of his front pocket \$160. Plaintiff never got that money back.

9. Larino took one hand and plaintiff was humiliated, as people started gathering around. Larino forced him on the car and then started grabbed his head and banged it five or six times on the car.

10. His eye was dripping blood; he lost focus, became dizzy and could not see. The other hand was cuffed and Nicholosi and asked Larino what plaintiff was being arresting for. Nevertheless, Nicholosi did not stop the illegal arrest.

11. Finally when plaintiff was in the car cuffed, he was taken straight to central booking. There, corrections officers realized Mr. Stone needed medical attention and took him to Lincoln Hospital where he got a cat scan and was diagnosed with trauma. He was returned to booking and charged with resisting arrest and disorderly conduct.

12. Plaintiff went to court about 11 times. The disorderly conduct charged was dismissed as facially insufficient. There was no underlying charge, but the judge let the resisting arrest charge stand because theoretically he could have been arrested for an having open container of alcohol - something that was mentioned in the complaint but not charged.

13. Eventually, his case was disposed of with an ACD. However, the arrest had been bogus, he was grievously injured and he was the prevailing party of the disorderly conduct charge. He now sues for redress.

FIRST CAUSE OF ACTION EXCESSIVE USE OF FORCE 42 U.S.C. § 1983

14. Plaintiff repeats and realleges the previous allegations as if fully set forth herein.

15. Acting under color of state law, defendants used excessive force that caused damages.

16. As a result of the foregoing, Plaintiff has been damaged and demands compensatory and punitive relief.

SECOND CAUSE OF ACTION FAILURE TO PROTECT PLAINTIFF' RIGHTS 42 U.S.C. § 1983

17. Plaintiff repeats and realleges the previous allegations as if fully set forth herein.

18. Defendant Nicolosi had a duty to intercede and prevent the illegal stop, search, arrest and excessive use of force upon Plaintiff, but failed to do so.

19. As a result of the foregoing, Plaintiff has been damaged and demand compensatory and punitive relief.

THIRD CAUSE OF ACTION MALICIOUS PROSECUTION 42 U.S.C. § 1983

20. Plaintiff repeats and realleges the previous allegations as if fully set forth herein.

21. Acting under color of state law, defendants brought charges against plaintiff without probable cause and plaintiff had to return to court multiple times before one of the charges were dismissed in his favor.

22. As a result of the foregoing, Plaintiff has been damaged and demands compensatory and punitive relief.

FIFTH CAUSE OF ACTION BATTERY

23. Plaintiff repeats and realleges the allegations set forth in all preceding paragraphs as if fully set forth herein.

24. Lavino intentionally engaged in bodily contact with plaintiff, and such contact was harmful or offensive in nature.

25. By virtue of the foregoing, Plaintiff has been damaged.

SIXTH CAUSE OF ACTION ASSAULT

26. Plaintiff repeats and realleges the allegations set forth in all preceding paragraphs.

27. Lavino intentionally placed plaintiff in apprehension of immediate battery.

28. By virtue of the foregoing, Plaintiff has been damaged.

SEVENTH CAUSE OF ACTION FALSE ARREST AND IMPRISONMENT

29. Plaintiff repeats and realleges the allegations set forth in all preceding paragraphs as if fully set forth herein.

30. Defendants brought false charges against plaintiff causing his confinement, which was not privileged. Plaintiff was aware of the confinement.

31. By virtue of the foregoing, Plaintiff has been damaged.

EIGHTH CAUSE OF ACTION MALICIOUS PROSECUTION

32. Plaintiff repeats and realleges the previous allegations as if fully set forth herein.

33. Defendants made malicious charge of possession of marijuana and resisting arrest against for which they had not an ounce of probable cause.

34. As a result of the foregoing, Plaintiff has been damaged and demands compensatory and punitive relief.

NINTH CAUSE OF ACTION CONVERSION

35. Plaintiff repeats and realleges the previous allegations as if fully set forth herein.

36. Lavino converted \$160 of plaintiffs property without permission.

37. As a result of the foregoing, Plaintiff has been damaged and demands compensatory and punitive relief.

**TENTH CAUSE OF ACTION DEPRIVATION OF PROPERTY WITHOUT DUE PROCESS
UNDER THE FOURTH AND FOURTEENTH AMENDMENTS AND [42 U.S.C. § 1983](#)**

38. Plaintiff repeats and realleges the previous allegations as if fully set forth herein.

39. Lavino converted \$160 of plaintiffs property without permission.

40. As a result of the foregoing, Plaintiff has been damaged and demands compensatory and punitive relief.

WHEREFORE, Plaintiff demands as follows:

A. Compensatory damages;in excess of the jurisdictional amount of this court;

B. Punitive damages to be determined by the trier of fact;

C. Cost of suit and attorneys fees pursuant to [42 U.S.C. § 1988](#);

D. Such other relief as the Court may deem just and proper.

Dated: New York, New York September 22, 2015

GREGORY ANTOLLINO

Attorney for Plaintiff

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